
COURT CASES

Lagleva v. Doyle (License Plate Surveillance)

Immigrants' Rights, Police Practices, Privacy and Technology

Status: Closed Case

Latest Update: Jun 02, 2022



[Summary](#)

[Documents](#)

Summary

California activists are suing the Marin County Sheriff for illegally sharing drivers' license plate data with ICE, CBP and other out-of-state agencies.

On October 14, 2021, community activists sued Marin County Sheriff Robert Doyle for his practice of illegally sharing millions of local drivers' license plate numbers and location data with hundreds of federal and out-of-state agencies, including Immigration and Customs Enforcement and Customs and Border Patrol. Since at least 2014, the Marin County Sheriff's Office has shared and transferred the sensitive location information of its residents and people who travel through its boundaries with these agencies—a practice that violates two California laws, endangers the safety and privacy of local immigrant communities, and facilitates location tracking by police.

The sheriff collects this information using an invasive surveillance technology: automated license plate reader (ALPR) cameras. These are high-speed cameras that can be fixed to a particular location (such as highway overpasses) or travel atop police cars that automatically capture all license plates that come into view, recording the vehicle's exact location, date, and time. That sensitive information is then stored in a database, which the sheriff allows hundreds of out-of-state agencies and several federal agencies to access.

California's S.B. 34, enacted in 2015, bars this practice. The law requires agencies that use ALPR technology to implement policies to protect privacy and civil liberties, and specifically prohibits police from sharing ALPR data with entities outside of California. The sheriff also violated the California Values Act (S.B. 54), also known as California's "sanctuary" law. Enacted in 2018, the law limits the use of local resources to assist federal immigration enforcement.

The suit seeks to end the sheriff's illegal information-sharing practice, which puts immigrant communities at particular risk of harm. Federal immigration agencies routinely access and use ALPR information to locate, detain, and deport immigrants. Documents released by [the ACLU in 2019](#) show that other police departments, including many in California, are similarly sharing this type of personal information with out-of-state and federal agencies.

The lawsuit is the first of its kind to challenge the sharing of private information collected by ALPR mass surveillance.

In May 2022, the plaintiffs reached a settlement with Marin County and Marin County Sheriff Robert Doyle. Under the settlement, Sheriff Doyle has agreed to stop sharing license plate and location information with agencies outside of California to comply with state laws S.B. 34 and S.B. 54. This means that federal and out-of-state agencies will no longer be able to query information collected by the county's ALPR cameras. The settlement is binding for any of Sheriff Doyle's successors.

Read more:

- [Community Activists Reach Settlement with Marin County Sheriff for Unlawfully Sharing Drivers' Locations with Out-of-State and Federal Agencies \(June 1, 2022\)](#)
 - [California Activists Sue Marin County Sheriff for Illegally Sharing Drivers' License Plate Data With ICE, CBP and Other Out-of-State Agencies \(October 14, 2021\)](#)
 - [Plaintiff Statements](#)
 - [Summary of the Case](#)
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Documents



- 10/14/2021 [Filing: Petition](#)
- 06/01/2022 [Settled: Notice of Settlement and Settlement Agreement \(Notice of Settlement\)](#)
- 06/01/2022 [Settled: Notice of Settlement and Settlement Agreement \(Settlement Agreement\)](#)

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